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November 20, 2020

Via Electronic Mail Only

Craig Yaniglos, Treasurer
Brecksville-Broadview Heights City
School District Board of Education
6638 Mill Road
Brecksville OH 44141

Re: Response to Request for Proposals (11/11/20)

Dear Craig:

Thank you for reaching out to me for the opportunity to become more involved with the Brecksville-Broadview Heights Schools and, in particular, with the critical negotiations that lay ahead for the District this spring. As you already know, all of the attorneys at Ennis Britton have long dedicated their practices to school law, which includes a diverse number of subspecialties, including collective bargaining and labor relations.

For this limited RFP, please know that on behalf of the firm, I am requesting consideration by the Board for me to assist in these negotiations. In so doing, please know that I meet the minimum requirements set forth in Paragraph 2 of the RFP. In addition, I am authorized to accept the terms and conditions contained in the RFP on behalf of Ennis Britton Co., LPA.

The “core” philosophy of our statewide school practice is to gain a full understanding of the mission of our client districts and to become a vested, integral part of the team – not just a bill at the end of a month. In order to accomplish this, we endeavor to recognize and adjust our role as it is defined by district leadership (not the other way around). Our experience shows us that when we become a part of the team, our service can add value by preventing legal problems and ultimately reduce and minimize District expenditures for legal services. These objectives line up with our core value of responsiveness and “24-7” accessibility. Though in a somewhat targeted capacity, I have truly enjoyed working with your District over the past several years on number of legal matters.

We embrace the belief that in our role as counsel (generally and as the District’s labor representative) there should be no “surprises” and that our clients be fully and regularly informed on pending legal matters. As an organization, we place great value on relationships and

communication and strive to proactively provide current, accurate, and timely information on matters affecting the Board's legal rights and obligations. Our commitment to our clients is to be professional in all our dealings and relationships.

In terms of experience in representing Ohio school boards of education, Ennis Britton has an extensive resume. While the creation of the firm was announced in March of 2015, the breadth of experience of its members reaches back many years prior to that time. My own school law practice began in 1984. Other shareholders and associates have been practicing school law for over twenty years: collectively, we have over 150 years of experience representing public schools. We believe that the depth and talent of our "bench" is truly what allows us to continue to grow and sustain our success in representing many school districts throughout Ohio (over one-hundred fifty (150) school districts in over forty (40) counties).

Although Ennis Britton is a firm with a long history of education law practice, we are committed to using today's (and tomorrow's) technology to partner and communicate with our clients. This has certainly allowed us to maintain strong ties with our clients during the pandemic. Each attorney is available by direct office and cell phone numbers. We text, Skype, Facetime, Tweet, video conference and blog; in short, we will meet you in person and in cyberspace when and where it is convenient for you, including live stream or via your meeting technology. We fully understand and appreciate that the work of school boards and the administrative team is not confined to "regular" business hours, and we pride ourselves on accessibility when your District needs us. I am confident that the attached listed references will confirm the extent of our responsiveness.

Due to the depth and range of experience of our firm's attorneys, we are frequently asked to speak for the Ohio School Boards Association (OSBA), the Ohio Council of School Board Attorneys (OCSBA), the Buckeye Association of School Administrators (BASA), the Ohio Association of School Business Officials (OASBO), the Ohio Association of School Personnel Administrators (OASPA), the Ohio Association of Pupil Service Administrators (OAPSA), the Ohio Association of School Resource Officers (OSROA), The Ohio Association of EMIS Professionals (OAEP), and many regional workshops across the state, as well as monthly legal updates for a number of educational service centers. As you know, I am one of the founders of the highly successful Ashland Leadership Academy Seminars (ALAS), that is entering its 20th year this January. Recently, at this year's virtual Capital Conference, I presented on the issue of addressing employee absenteeism and have been a frequent speaker on all aspects of collective bargaining for the past three decades.

Our approach of assisting districts by proactively avoiding problems through quality professional development and servant leadership has allowed us to reduce our clients' legal costs. Because we value the need for strong and effective educational leadership, we are frequently-requested presenters at board and administrative retreats all over the state, and offer customized

training to develop personal connections and train district leadership teams to work together to achieve alignment and mutual goals.

Nowhere is this more important than in the collective bargaining process, where we find success in attaining district goals while enhancing labor relations rather than exacerbating divisions. Our reputation in bargaining is one of both strength and fairness and we have earned and enjoy the respect of those representing unions in our business. We find satisfaction in helping districts to meet goals that facilitate and promote positive student outcomes without unnecessarily damaging key relationships in the bargaining process.

With respect to my own personal experience in bargaining labor contracts, I have been extremely fortunate to assist over 40 Ohio school districts at the table during my 30 plus years of bargaining, working with teaching and non-teaching units and a myriad of representatives from OEA, OFT, OAPSE, Teamsters, AFSCME, SEIU, and others, including non-affiliated local unions. I am equally comfortable with traditional and interest based models, though my approach in each is to utilize an interest based problem solving mindset regardless of the format. I also have experience with hybrid models and often propose a “condensed” bargaining approach for mature contracts where the parties have positive labor relations and circumstances (see below) are conducive. This allows for a focused and concentrated effort that can reduce the expense of bargaining in both money and the valuable commodity of time.

Although we had to “slug it out” as public employers following the birth of Ohio’s Collective Bargaining Law in the mid 80’s, the overwhelming and emergent reality is that in order to be successful and allow a district to align with its mission of positive student outcomes, the collective bargaining process must recognize that all of the stakeholders are in this together. This is not to say that there will not be conflict and difficult conversations. Nor does this awareness underestimate the extraordinary importance of these contracts – not only in spending a majority of a district’s often scarce resources – but also in their critical function of organizing and framing these important relationships. Indeed, the goal of adjusting and preserving critical management rights in meeting the needs of kids cannot be understated. But the phrase, “there is more that unites us than divides us” is also very much the case.

In every bargaining circumstance, it is my closely held belief that my role is to understand the particular dynamics and needs of the individual district – including learning its history and culture – without feeling the need to impose specific outcomes or cookie cutter solutions. For example, if selected to assist the Board here, my approach will be from a “let Brecksville be Brecksville” mindset. Creative problem solving is a useless skill set unless one is solving the problems that actually exist at ground zero and fit the vision of district leadership. The only effective way of adding value to negotiations is to open up the authentic local concerns that truly need resolution. In my opinion, it is all too often the case that board representative’s fall into the trap of feeling the need to exercise dominion over and control of the process rather than helping to establish an environment where synergy can emerge authentically.

To be sure, that can't and doesn't always happen. Sometimes negotiations are plagued by an ongoing lack of trust and deep division. For example, there are some labor representatives that simply will not allow for constructive dialogue. Union leadership on campus can remain locked into the "win/lose" mentality and some have even held hostage the desires of the rank and file. You simply have to adapt to the realities of what is actually happening on the ground.

In response to the inquiry posed in 6.2.1 of the RFP, I will confess to having a considerable wealth of difficult bargaining experiences from which to draw upon. During negotiations with a first ring Cleveland suburb several years ago, the Board decided it would return to its long since abandoned position of having outside counsel at the table. This change was not warmly received by the teachers union, which was a powerful force in the district. Before bargaining started, I asked for a meeting of the teams to discuss trying an interest-based approach. Without the requisite time for formal FMCS training, I asked if I could walk everyone through the basic concepts. To my surprise, they agreed and it became readily apparent that there was a hunger on both sides of the table for a more respectful "adult conversation" than had been the case for many years. The training allowed me to gain a level of trust that might have otherwise taken months if not years – and it revealed my philosophy for all to see. It was risky, but at the end of the process, the district signed a three year deal and, for the first time in decades, completed all the negotiations prior to the end of the school year. Relationships were enhanced and most were relieved that the "root canal" experience of drawn out traditional bargaining sessions which moved almost automatically to impasse mediation by fall had ended. Perhaps, for good.

While it is difficult to cover all the bases in responding in writing to a request for proposals, I can also suggest that I have a solid working relationship with the OEA representative currently assigned to the Brecksville, having worked with him in North Royalton and other districts. Should you determine to change from your bargaining counsel to the undersigned, I would only suggest that this familiarity and history with the BEA's labor relations consultant might be less disruptive than it might otherwise be.

My services are offered to the Board at my hourly rate of \$350 per hour. Because I adhere to a "shortest distance between two points" philosophy, this is the overwhelming choice of those for whom I have bargained. If a good contract can be completed in a few meetings, then it is my desire and focus to get that accomplished. Nevertheless, I would be willing to discuss a flat fee arrangement or hybrid should the Board be interested in my services and that option.

As for references, I have attached a listing of same in accordance with the instructions set forth in 6.3 of the RFP.

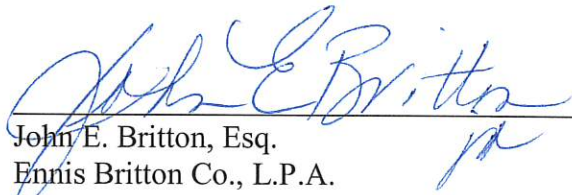
Our Federal Taxpayer Identification Number is 31-0960551.

Craig Yaniglos, Treasurer
Brecksville-Broadview Heights City
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Having worked with the Board for several years, you know that my office is a few minutes north off of I-77 in Seven Hills/Rockside.

Thank you, again, for reaching out to me and Ennis Britton. I am available for follow up with you and the Board at your convenience. I am enthusiastic about the prospects of playing a larger role with the Brecksville-Broadview Heights City Schools.

Sincerely,



John E. Britton, Esq.

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P.S. Congratulations on your new position with the District and continued success!

Selected Client References

North Royalton City School District
6579 Royalton Road
North Royalton, Ohio 44133
(440) 237-8800

Individual Contacts:

Greg Gurka, Superintendent
Jim Presot, Assistant Superintendent
Patrick Farrell, Director of Personnel
Biagio Sidoti, Treasurer

Services performed since 1989 include human resources, labor negotiations, labor relations issues, special education, Board governance, pupil personnel matters, general counsel, administrative professional development, workers compensation, ad valorem taxation.

Tallmadge City School District
486 East Avenue
Tallmadge, Ohio 44278
(330) 633-3291

Individual Contacts:

Jeff Ferguson, Superintendent
Jeff Hostetler, Treasurer
Steve Wood, Chief Operations Officer

Services performed since 2000 include human resources, labor negotiations, labor relations issues, Board governance, pupil personnel matters, special education, general counsel, business contracts, competitive bidding, ad valorem taxation, and construction.

Amherst Exempted Village School District
550 Milan Avenue
Amherst, Ohio 44001
(440) 988-4406

Individual Contacts:

Steven Sayers, Superintendent
Michael Molnar, Assistant Superintendent
Amelia Gioffredo, Treasurer

Services performed since 2008 include human resources, labor negotiations, labor relations issues, Board governance, pupil personnel matters, special education, general counsel, business contracts, competitive bidding, ad valorem taxation, and construction.

Copley-Fairlawn City School District
3797 Ridgewood Road
Copley, Ohio 44321
(330) 664-4800

Individual Contacts:

Brian Poe, Superintendent
Brian Williams, Assistant Superintendent
John Wheadon, Treasurer
Steve Robinson, Business Manager

Services performed since 1990 include human resources, labor negotiations, labor relations issues, special education, Board governance, pupil personnel matters, general counsel, administrative professional development, workers compensation, ad valorem taxation.

North Ridgeville City Schools
5490 Mills Creek Lane
North Ridgeville, Ohio 44039
(440) 327-4444

Individual Contacts:

Roxanne Ramsey-Caserio, Superintendent
Keith Ahearn, Assistant Superintendent
David Pritt, Director of Curriculum and Instruction

Services performed since 2006 include human resources, labor negotiations, labor relations issues, Board governance, pupil personnel matters, general counsel, business contracts, competitive bidding, and construction.

Brunswick City School District
3643 Center Road
Brunswick, Ohio 44212
(330) 225-7731

Individual Contacts:

Michael Mayell, Superintendent
Mark Pepera, Treasurer
Sam Grida, Director of Business Affairs

Services performed since 2013 include human resources, labor negotiations, labor relations issues, Board governance, pupil personnel matters, special education, general counsel, business contracts, competitive bidding, ad valorem taxation, and construction.

Cuyahoga Heights Local Schools
4820 East 71st Street
Cuyahoga Heights, Ohio 44125
(216) 341-3737

Individual Contacts:

Tom Evans, Superintendent
Matthew Muccio, Treasurer

Services performed since 2016 include human resources, labor negotiations, labor relations issues, Board governance, pupil personnel matters, special education, and general counsel.

Additional References Available Upon Request